

Chapter 6 & 10

4. An Italian man H and a Cantonese woman W got married in Guangzhou in July 2007. W has her domicile in Guangzhou, but after marriage she went to live with her husband in Rome. In May 2008, H decided to sue for a divorce in Guangzhou Haizhu District Court. W opposed to the exercise of jurisdiction by Haizhu District Court and took proceedings for separation in an Italian court.

Questions:

(1) Why did H sue in Guangzhou? Why did W sue in Italy?

(2) Does Haizhu district Court has jurisdiction, why or why not?

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5. A Chinese woman W and a French man H got married in Shanghai. After marriage H and W lived in Shanghai and gave birth to two children. Then they moved to France leaving two children to live with their grandparents. Two years later H and W divorced, leaving their children unsupported. The children sued their parents for the maintenance.

Questions:

(1) Does Chinese court have jurisdiction? Why or why not?

(2) What shall be the governing law ?

6. Wang and Ke got married in 1975. In 1985, Wang went to US to study. Wang petitioned for a divorce in a US court in 1987. In 1990, Ke and Wang entered into a divorce agreement, Wang signed the agreement but didn't come back to register the divorce agreement. In 1991, Ke

petitioned for a divorce in the People's Court of Yizheng. During the trial of the case, Ke received from Wang a photocopy of the judgment of a US court allowing Wang's divorce petition. Ke applied to withdraw her case and petitioned to the Middle Court of Yangzhou City for the recognition of the divorce judgment of the US court. The People's Court of Yizheng allowed Ke's petition, but the Middle Court of Yangzhou City did not accept the petition for the recognition of the US judgment as the photocopy of the judgment is not original and there is no Chinese translation of the judgment. In 1994, Ke sued again in the People's Court of Yizheng for a divorce, she also required for the guardianship of their son and the separation of their common property.

Question:

1. Did the People's Court of Yizheng have jurisdiction over Ke's petition for divorce? Why or Why not?
2. Should the People's Court of Yizheng allow Ke's withdrawal petition?
3. Should the Middle Court of Yangzhou recognize the judgment from the US court?
4. What law should govern this case?

7. Mr.Cao and Ms.Xin got married in 1944.Cao went to Taiwan in 1949 and then emigrated to US in 1957. In 1975, Xin went to US to live together with Cao. Since 1984, Cao and Xin came back to China once a year and bought three houses in Ningbo City. In 1988, Cao met a woman Wang. In Feb.1989, Cao and Xin quarreled with each other, then Cao

came back to Ningbo to cohabitate with Wang. In Oct.1990, Xin came back to Ningbo to persuade Cao to leave Wang. Cao paid no attention to Xin' s words. Instead, he returned to US to petition for a divorce and withdrew their common deposits US\$82553.54 in the bank. In August 1991, Cao presented a US divorce decree, to the Bureau of Civil Administration of Ningbo and registered his marriage with Wang. In Dec.1991, Xin applied to the Middle Court of Ningbo City for a divorce with Cao, requiring the court to separate their common properties and order Cao to pay her alimony since March 1989.

Questions:

1. Please comment on the validity of the marriage between Cao and Wang.
2. Should the Middle Court of Ningbo city hear Xin' s case? Why or why not?
3. What law should govern this case?

8. Mr.Bian and Mrs Bian were Chinese, they met in 1993 in Japan when they were studying there and got married in Fugang of Japan in 1999. For convenience of visa application in Japan, they also applied for a marriage certificate in the Chinese Consulate in Japan. In Oct.2002,Mr.Bian and Mrs Bian changed their nationality and naturalized to be Japanese. Mr Bian has a permanent employment contract with a Japanese company. In April 2005, Mr.Bian was sent by his company to work in Beijing for two years, Mrs Bian and their daughter accompanied Mr.Bian to Beijing. The expiring date of their visas is March 14 of 2007. Just before the expiring date of their visas, Mr. Bian sued for

divorce in the second Middle Court of Beijing City. Mrs Bian disputed the jurisdiction of the second Middle Court of Beijing City.

Question:

1. Should the second Middle Court of Beijing City exercise jurisdiction over this case? Why or why not?

Tales of the Wind

By Ellen Viste

Ellen Viste

Ellen Viste (b. 1973) is a meteorologist and former climate researcher, now working with climate science communication. She has a PhD in meteorology from the University of Bergen and has also studied non-fiction writing. Her experience in dissemination of weather and climate science extends back to the 1990s. She lives in Bergen—a city known for its rain and as the cradle of modern weather forecasting.

When the winds of the world move the air, it's never just air. There is something in the air. Stories of the wind are about the air and everything it carries with it. Through tales from science, history, and journeys in nature, we learn why the air rarely stands still, and how the perpetual movement of seeds, water vapor, pollutants, and microbes shapes the world.

Must there be wind on Earth? Where does the wind come from? A kayaking trip against the wind introduces the questions. In the first part of the book, we get answers about what wind is and what characterizes the wind in different parts of the world.

Humans are like crabs at the bottom of a sea of air. Red wine and larks were among the ingredients when Galileo Galilei, Blaise Pascal, and Robert Boyle explored air pressure that stirs up this sea—the movements we know as wind. On a June day in 1784, a woman sang from a balloon over Lyon, cheerful and lighter than air. That too is a story of pressure and wind.

Tales of sailors show how the wind guided the Europeans' journeys. Columbus sought the sea route to Asia but instead discovered the trade winds over the Atlantic Ocean. Vasco da Gama defied centuries of reason and had to battle against the monsoon, a headwind that lasts for months on end. Such experiences allowed Edmond Halley to present the world's first wind map in 1686.

If the Earth stopped rotating, would the wind still blow? The wind cannot be stopped, but for centuries, the hope of being able to predict it has been a driving force. In the 1870s, Jesuit monks in Cuba and the Philippines developed hurricane forecasts long before people outside the tropics took weather forecasts seriously. The book takes us further to an attic in Bergen, Norway, in 1919. A group of young men developed concepts of low pressure and fronts through drawing. Along with Vilhelm Bjerknes' theory that weather is actually predictable, they revolutionized the world's weather forecasting.

In 1944, balloons with bombs began to fall over the USA. The Japanese waged war with the jet stream, a band of strong wind high above the ground. The world's first intercontinental weapon was made of paper we associate with hand fans and lanterns.

The second part of the book is about how the wind shapes the landscape and transports both natural and artificial substances from place to place.

A motorcycle race through prehistoric sand dunes in Norway initiates the story of British military man Ralph Bagnold, who drove a Model T Ford in the desert of Egypt. Back in London, he built a wind tunnel to study how sand grains hop when it's windy.

Snow also hops. At the top of the Hardangerjökulen glacier, Leeds researcher Adam Booth pounds the ground with a sledgehammer. The sound of the blows shows where the wind has gathered the most snow. The glacier is in danger of disappearing due to climate change, and the future depends on where the snow accumulates.

When Charles and Anne Lindbergh flew over Greenland in 1932, they sampled the air. The results showed that seeds and fungal spores can be carried far from their origin. Many plants spread through the wind—both normally and when species enter new areas. We join a volunteer effort to eradicate an alien tree species.

In the rainy city of Bergen, we meet a researcher trying to find out how far the water that hits our heads has traveled. Radioactive waste from Fukushima circled the globe in 2011, and likely foot-and-mouth disease virus reached Denmark in 1982 through the wind from East Germany. Can humans also get sick from opening their mouths? Do we breathe in air that others have exhaled?

Greek gods used the wind and weather to control humans. Could we also take control? The stories of discoveries, art, science, and everyday life also revolve around humans' relationship with nature. With enough wind turbines, could we harness the power of the air? "Stories of the Wind" holds a search for order in a world of uncontrollable forces.